

Amendment No. 1 to HB0454

Crawford
Signature of Sponsor

AMEND Senate Bill No. 330*

House Bill No. 454

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 3-10-105, is amended by deleting the section and substituting instead the following:

(a) The office of the corrections ombudsman, the office of legal services, the office of legislative administration, the office of legislative budget analysis, and the office of legislative information systems established by §§ 3-11-102, 3-12-101, 3-13-101, 3-14-201, and 3-16-101, respectively, may call upon the state library, state universities and colleges, the comptroller of the treasury, the attorney general and reporter, and all other state departments and agencies for assistance and advice.

(b) It is the duty of the attorney general and reporter to render opinions and give counsel to the office of the corrections ombudsman, the office of legal services, the office of legislative administration, and the office of legislative information systems upon request of the ombudsman or directors of the respective offices.

SECTION 2. Tennessee Code Annotated, Title 3, is amended by adding the following as a new chapter:

3-11-101. Chapter definitions.

As used in this chapter:

(1) "Agent" means any paid or unpaid legal counsel or any other person or entity chosen by a correctional employee or inmate of the department or a contractor to represent the interests of such employee or inmate;

(2) "Contractor" means any entity entering a contractual agreement with the commissioner of correction to provide correctional services to inmates under the custody of the department;

(3) "Correctional employee" means any employee of the department or a contractor;

(4) "Department" means the department of correction;

(5) "Facilities" means the prisons of this state, whether operated by the department or a contractor;

(6) "Office" means the office of the corrections ombudsman; and

(7) "Ombudsman" means the director of the office.

3-11-102. Creation - Duties.

(a) There is created the office of the corrections ombudsman.

(b) The office has those powers and duties necessary and proper to enable the office to fully and effectively carry out this chapter, including, but not limited to:

(1) The authority to commence an investigation upon:

(A) The receipt of a complaint from a member of the general assembly, a correctional employee, an inmate, or an agent concerning an administrative act that is alleged to be a violation of state or federal law, department rules or policies, of private correctional facility policies, or of a contractual agreement entered into between the department and operator of such facility; or

(B) The ombudsman's own initiative for significant correctional employee or inmate health and safety issues, the security of facilities, public safety, or other matters for which there is no effective administrative remedy;

(2) The authority to work with the department or a contractor to investigate complaints regarding issues within facilities;

(3) The authority to render a decision on the merits of the investigation and make recommendations to the department or a contractor in writing and if, in the opinion of the ombudsman, the department or contractor should:

- (A) Consider the matter further;
- (B) Modify or cancel the action;
- (C) Alter a rule, practice, policy, or ruling;
- (D) Explain in detail the administrative action in question; or
- (E) Rectify an omission;

(4) The authority to receive and respond to all correspondence sent by a correctional employee, an inmate, or an agent to a member of the general assembly;

(5) The authority to advise the general assembly on matters pertaining to the state's correctional system;

(6) The authority to select and recommend to the appropriate state officials the employment or transfer of all personnel required for the operation of the office up to a maximum of ten (10) individuals; provided, that the initial transfer of a preferred service employee must not result in impairment, interruption, or diminution of employee rights, salary, benefits, leave accumulation, or employment. The commissioner of human resources is authorized to determine if there has been any impairment of rights, salary, benefits, leave accumulation, or employment as a result of a transfer. A preferred service employee may seek redress of a determination through a request for a declaratory order by the commissioner of human resources pursuant to § 4-5-223;

(7) The authority to prescribe all forms to be used by the office in the transaction of the office's business;

(8) The duty to keep appropriate records of all of the office's official actions and to make them accessible in accordance with law and the policies of the office; and

(9) The duty to adopt written policies and procedures to govern the office's internal operations, subject to the approval of the director of legislative administration.

3-11-103. Ombudsman - Staff.

(a) The speaker of the senate and the speaker of the house of representatives shall jointly appoint an ombudsman, who shall have training, education, or experience in the criminal justice system, law, corrections, behavioral science, or mental health, and must have such training or practical experience in government as may be deemed necessary to perform the duties of the office.

(b) The ombudsman shall not hold any other salaried public office, whether elective or appointive, and shall not engage for pay in any other business or profession.

(c) The speakers may remove the ombudsman for cause.

(d) The speakers shall determine the compensation of the ombudsman, while the compensation of other personnel must be determined by the speakers upon recommendation of the ombudsman.

(e) Personnel must be employed on recommendation of the ombudsman with the approval of the speakers of the senate and house of representatives.

(f) The ombudsman and other personnel shall be chosen without reference to party affiliation, but solely on the basis of fitness to perform the duties of the office.

3-11-104. Office space.

Suitable office space must be provided in Nashville convenient to the general assembly.

3-11-105. Records are public - Exceptions.

(a) Except as provided in subsection (c), all books, papers, records, and correspondence of the office pertaining to its work must be kept in the office and all such materials are public records except:

(1) Intraoffice memoranda made by the ombudsman or the ombudsman's staff; and

(2) Work papers and correspondence, including correspondence by electronic mail, with any person receiving service from the office.

(b) Such papers and correspondence described in subdivisions (a)(1) and (a)(2) may become public records whenever the speakers so order.

(c) Communications to the office are confidential and must be protected as privileged correspondence in the same manner as legal correspondence or communications.

3-11-106. Reports.

(a) Beginning July 1, 2027, and each July 1 thereafter, the ombudsman shall deliver a report to the chair of the state and local government committee of the senate and the chair of the committee of the house of representatives with jurisdiction over state and local government concerning its work and any recommendations it wishes to make pertaining to the state's correctional system.

(b) The report must include, but not be limited to:

(1) The correctional employee staffing levels at facilities;

(2) The frequency at which facilities are placed on lockdown;

(3) The frequency at which criminal offenses are committed within facilities; and

(4) The frequency at which correctional employee misconduct and disciplinary issues occur.

3-11-107. Subpoenas - Oaths.

In carrying out the office's work, the ombudsman may request the general assembly through the appropriate committee to issue subpoenas, as authorized in § 3-3-108, including subpoenas duces tecum, to enforce the attendance of witnesses and the production of records, documents, papers, or other items of evidence, and the administration of oaths to persons testifying in cooperation with an investigation of the office.

3-11-108. Cooperation with the ombudsman.

(a) The department, a contractor, and all correctional employees shall at all times cooperate with the ombudsman and shall furnish to the office and its personnel information as may be necessary to enable the office to perform its functions.

(b) The department, a contractor, and all correctional employees shall at all times give the ombudsman and any employees of that office free access to all correctional employees working and inmates confined within correctional facilities.

(c) The ombudsman or an employee of the office may conduct unannounced visits to correctional facilities, and the department, a contractor, and all correctional employees shall allow entry to those facilities for the purposes of carrying out the duties of the office.

(d) If the department, a contractor, or any correctional employee fails to comply with subsection (a),(b), or (c), the ombudsman must provide written notice to the chairs of the government operations committees of the senate and house of representatives who are then authorized to conduct a hearing regarding such failure to comply in accordance with the Tennessee Governmental Entity Review Law, compiled in title 4, chapter 29.

3-11-109. Complainant not to be penalized for complaint, cooperation, or communication; prohibitions.

(a) A correctional employee or inmate shall not be penalized in any way by any public official, contractor, or correctional employee as the result of filing a complaint with the office or cooperating with the office in investigating a complaint.

(b) A person shall not hinder or obstruct the lawful actions of employees of the office, or willfully refuse to comply with requests from employees of the office.

(c) The department or a contractor shall not take disciplinary action against a correctional employee or inmate for communicating with the office.

SECTION 3. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 4. For the purposes of hiring personnel, acquiring office space, and carrying out administrative duties necessary to effectuate this act, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect on January 1, 2026, the public welfare requiring it.